



Freezing democracy

The ECI is functioning as a tool of the Bharatiya Janata Party in West Bengal

Almost 28 years after Mamata Banerjee set up the All India Trinamool Congress and designed its symbol of ‘grass and flowers’, the Election Commission of India (ECI) on September 17, 2026, froze the party’s name and symbol. The 14-page order stated that since two rival groups – one led by Ms. Banerjee and the other by Arup Roy – are now claiming to be the party, the matter requires “substantive determination”, and neither group can use the party’s name or symbol. The ECI has allotted new names and symbols to both groups. The ECI’s move has effectively denied Ms. Banerjee of her party’s name and symbol. For nearly three decades, crores of voters have placed their faith in the party’s name and symbol, elected Ms. Banerjee as Chief Minister of West Bengal three times, and sent scores as its MPs to Parliament. Even in the April 2026 West Bengal Assembly polls, 41% of the electorate, or more than 2.60 crore voters, voted for Ms. Banerjee’s party, while the margin between it and the Bharatiya Janata Party was only about 32 lakh votes. Opposition parties, including the Congress, have said that similar attempts to freeze the name and symbol were made in the case of the Shiv Sena, calling such action of freezing the name and the symbol as “party theft” and a case of democratic decline.

Political parties are organic entities that keep democracy vibrant and alive and any attempts to engineer their dissolution is an attack on the very foundations of India’s democracy. If a political party has to wither away, it should happen only through the determination of the people. Serious questions have been raised about the role of the ECI, which held the West Bengal Assembly polls in 2026 after a hurriedly organised Special Intensive Revision (SIR) of the electoral rolls that left lakhs of voters out, and is now freezing the name and symbol of the principal Opposition party. Free and fair elections form the bedrock of the republic. When political parties, which are engines for ensuring that the will of the electorate is reflected through free and fair elections, are dismantled and stripped of their names and symbols, the ECI cannot absolve itself of responsibility or hide behind processes and practices. The BJP leadership in West Bengal has repeatedly claimed that, after the Assembly polls, there would be no existence of the Trinamool Congress as a party. The ECI’s acts of omission and commission clearly suggest that it is acting in tandem with the interests of the BJP.

Water wealth

Groundwater exploitation in Punjab disincentivises small farmers

That Punjab is over-extracting groundwater is not news. According to the 2025-26 Dynamic Groundwater Assessment, its groundwater extraction rate was 152%. While interventions reduced the number of ‘over-exploited’ blocks by five over the last two assessments, 72% of its 153 blocks are in the ‘red zone’, the highest among States. The principal consumer is irrigation for rice and wheat, amounting to nearly 25 billion cubic metres a year in the latest estimate. Data also show that the fraction of observation wells with water below 40 metres in the post-monsoon period grew by two percentage points between 2022 and 2025. What began as a strategy to improve food security eventually yielded a concentrated rice-wheat cropping system, in which assured procurement, subsidised electricity and access to groundwater made high-yield varieties, intensive irrigation and fertilizer use and mechanisation less risky than alternative modes of cultivation. In the same vein, the reluctance of the region’s farmers to pursue other crops due to uncertainties in storage options, prices, processing infrastructure, and supply chains has gone relatively unaddressed. But as the water crisis persists, the wealth gap among farmers is also widening. A recent study in the *Economic and Political Weekly* noted that while farmers with marginal landholdings use water more efficiently, wealthier farmers are better equipped to access lower water tables as well as draw higher volumes. So, as the water table drops, those unable to afford the requisite tube wells are forced to buy water, transferring their wealth to larger landowners and creating unregulated dependencies. A different study by two members of the same team, published in *Discover Sustainability*, reported that in Sangrur and Barnala, larger farms earned higher returns but recorded lower groundwater productivity *vis-à-vis* paddy, than smaller farms. Effectively, groundwater depletion raises the capital required for irrigation, which systematically privileges those farmers with better access to finance.

State governments continue to attempt to address the demand pressure in multiple ways even as the scale continues to overwhelm the resulting gains in efficiency. At this juncture, together with those efforts, the State should also endeavour to protect farmers’ incomes and access to irrigation while rendering the cost of additional extraction prohibitive. The ‘*Pani Bachao, Paisa Kamao*’ scheme, in which farmers are entitled to cash for every unused kilowatt-hour (for pumping) under a threshold, is already promising, albeit with low enrolment. Broadly, the State should use part of the electricity subsidy bill to directly support smallholder farmers, help collectivise irrigation infrastructure, and/or support farmers’ transition to other crops. When benefits follow the cultivator, including tenants, rather than owners of the land or pumps, welfare can subsidise access to water rather than groundwater extraction.

The September 23, 1918 Battle of Haifa occupies a curious place in the intertwined histories of India, Israel, and Palestine. What was, in military terms, a small but tactically significant cavalry action in the final phase of the First World War has, over the past century, become a site of layered remembrance, celebrated, contested, reclaimed, and reinterpreted by different communities for different purposes. Remembering Haifa today requires navigating not only the battlefield itself but also the shifting terrain of postcolonial identity, diplomatic symbolism, and the moral ambiguities of imperial history.

For India, Haifa is often invoked as a symbol of the extraordinary global footprint of Indian soldiers during the First World War. More than a million Indians served overseas, from Flanders to Mesopotamia, and over 74,000 died in a war not of their own making. The cavalry charge at Haifa, executed by the Jodhpur, Mysore, and Hyderabad Lancers, stands out as one of the most dramatic episodes of Indian valour abroad. Contemporary British war diaries describe the action as decisive in securing the port city and enabling the Allied advance northwards to Damascus. It was also, for military buffs, one of the last great cavalry charges, and featured the 15th Imperial Service Cavalry Brigade which overcame principally Ottoman forces. The complication is that the Indian forces were under British command – and many Palestinian Arabs were on the side of the Ottomans.

Reclaiming military history

In the decades since Independence, Haifa has become part of a broader effort to reclaim India’s military history from the shadow of the empire. The soldiers who fought there were colonial subjects, but their courage and sacrifice belong to India’s national story. Commemorating Haifa thus becomes an act of historical recovery: an assertion that Indian agency existed even within the constraints of imperial command.

The Haifa narrative also illustrates how postcolonial nations reinterpret their pasts to assert dignity and continuity. For India, celebrating the battle (and renaming a First World War memorial as “Teen Murti Haifa Chowk”) is a way of acknowledging that its soldiers shaped world events long before the country became a sovereign republic. For Israel, the memory of Indian cavalry “liberating” Haifa has been woven into a narrative of gratitude and friendship, symbolised by memorials and annual ceremonies. These commemorations serve diplomatic purposes, but they also reflect a genuine historical connection.

Yet, this reclamation of agency is complicated by the fact that the soldiers themselves had no say in the political consequences of their actions.



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As a diplomatic bridge

In recent decades, Haifa has acquired new significance as a symbol of India-Israel friendship. Indian leaders have visited the Haifa memorial; Israeli officials have spoken warmly of the Indian role in the city’s history. These gestures reflect the deepening strategic partnership between the two countries, but they also demonstrate how historical memory can be mobilised to strengthen contemporary ties.

At the same time, this diplomatic embrace has sparked debate among historians. Some Israeli scholars argue that the Indian role has been overstated, and that the real credit should go to the British and Australian soldiers, a view that partially reflects their discomfort at “owing” much to colonised brown-skinned cavalrymen. Meanwhile, Indian military historians point to British war records that clearly credit the Indian cavalry with the decisive breakthrough. These disagreements are not merely academic; they reflect the politics of national pride and the desire to shape historical narratives in ways that reinforce present-day identities.

The Palestinian critique of the Haifa narrative adds another layer of complexity. For Palestinians, the 1918 campaign is part of a longer story of foreign domination and displacement. From their perspective, the Indian cavalry’s victory facilitated British rule and the subsequent transformations that reshaped their homeland. This view does not diminish the bravery of Indian soldiers, but it challenges celebratory narratives that ignore the lived experience of those who were “liberated”. To many Palestinians, Indians

The Battle of Haifa represents India’s global military legacy, even as it lays bare the moral complexities of the empire

Using trade treaty policy to strengthen arbitration

India’s long-standing negotiations to sign new bilateral investment treaties (BITs) and free trade agreements (FTAs) with its prominent economic partners are bearing fruit. It has signed BITs with the United Arab Emirates (2024), Israel (2025), and Uzbekistan (2024), and FTAs with New Zealand (April 2026), the United Kingdom (July 2025), European Free Trade Association (March 2024), and Oman (signed December 2025). While much of the conversation has understandably focused on the potential economic benefits of these agreements and the mechanism for resolving investor-state disputes under international law (or the omission thereof), an important facet is frequently missing: their impact on commercial arbitration within India.

The opportunity beyond market access

India’s expanding network of BITs and FTAs presents an opportunity that goes beyond attracting foreign capital and opening export markets. Properly designed, these agreements can help India strengthen something every international business needs: a dispute-resolution system that is predictable, enforceable and trusted.

India already has the basic statutory architecture. The Arbitration and Conciliation Act, 1996, covers domestic arbitration, international commercial arbitration and the enforcement of foreign arbitral awards. The question now is how India’s treaty policy can reinforce that architecture. The answers vary.

In the first instance, India’s recent FTAs have generally omitted an investor-state dispute settlement (ISDS). However, given that a sizeable share of investment in India is made through contracts between foreign investors and Indian state agencies, future FTAs could better explain the rationale for this policy. For example, when the European Union-Australia FTA was negotiated, the contracting parties clarified that “the agreement does not cover the protection of



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India’s expanding treaty network can help build a stronger arbitration ecosystem

investments, which is not necessary given the level of trust in the respective legal systems of both parties”.

Taking a cue from this approach, India’s future FTAs should include provisions or preambular text that similarly clarify that the absence of an ISDS is justified by the availability of commercial arbitration remedies in India. Such provisions, alongside recent legislative reforms to strengthen India’s arbitration framework and the pro-arbitration approach of Indian courts, could help provide a middle ground between the state’s reservations about an ISDS and the desire of foreign investors to avoid litigating in Indian courts.

The second instance is where India’s BITs, which do provide for an ISDS, explicitly distinguish between the scope of treaty-based arbitration and commercial arbitration pursuant to a contract. For example, the India-Uzbekistan BIT excludes “disputes arising solely from an alleged breach of a contract” between the state and a foreign investor from the scope of an ISDS.

Such treaties also make access to ISDS conditional on foreign investors exhausting local remedies. They require foreign investors to submit their claims to the relevant domestic courts or administrative bodies of the host State for a specified period. The wording appears to exclude commercial arbitration tribunals seated in India. There does not appear to be a cogent policy reason for this exclusion. Accordingly, future BITs could clarify that foreign investors may also satisfy the exhaustion-of-local-remedies requirement by submitting the substance of their investment dispute to commercial arbitration in India.

Finally, India’s recent BITs indicate that the Government of India does not favour third-party funding in an ISDS. Since ISDS claims implicate sovereign decisions and can have a chilling effect on States’ regulatory policymaking, this approach is understandable. However, these considerations do not apply to commercial arbitration in India.

They should not be celebrating their role in a colonial project that eventually led to the “naqba” that displaced so many and uprooted them from their homeland.

“For Palestinians,” says their Ambassador to India, Abdullah Mohammed Abu Shawesh, “history is ...a tool for affirming roots and shaping the future, particularly in the face of an ongoing campaign against the Palestinian narrative led by the Zionist movement. ... It is therefore natural that we, as Palestinians, are highly sensitive to any attempt to manipulate history, as such attempts directly affect our right to exist and to determine our future.” In a letter to this writer, he sees “a clear Israeli effort to link contemporary India with the history of the establishment of Israel”, and questions India’s embrace of the “Israeli narrative”, arguing that the Indian soldiers were not heroes or valorous “martyrs” but “victims” of British colonial exploitation.

Indians, too, have their own ambivalence. Many feel pride in the courage of the soldiers but discomfort at the idea that Indian blood was shed in service of an imperial project that contributed to the dispossession of another people. This tension reflects a broader challenge in postcolonial memory: how to honour the sacrifices of those who served without endorsing the political aims of the empire they served under.

A site of contested memory

The challenge is that remembering Haifa today requires holding multiple truths at once. There is no denying that Indian soldiers fought with extraordinary courage. But they fought under colonial command, without agency over the political consequences, and their bravery had nothing to do with any Indian national ambitions. Their victory is celebrated in Israel and resented in parts of Palestine.

The battle of Haifa is a symbol of India’s global military legacy, but also a reminder of the moral ambiguities of the empire. It is a diplomatic bridge between India and Israel, but its role in India’s relations with the Palestinian people is morally ambiguous. Haifa, in other words, is many things, but it is above all a site of contested memory.

A mature historical consciousness does not demand choosing one narrative over another. It requires acknowledging the full complexity of the past: the bravery and the burden, the pride and the pain, the honour of the soldiers and the ambivalence of the outcomes. Haifa endures not because it offers a transcendent story, but because it forces us to confront the layered realities of history: that courage can serve causes not chosen by those who display it, that memory can unite and divide, and that the past can illuminate the present only when we are willing to face it in all its complexity.

Given these distinctions, India’s future BITs and FTAs should clarify that their prohibition of third-party funding in an ISDS does not, by itself, signal the impermissibility of such funding in commercial arbitration in India. This would, in turn, create room for Indian regulators to develop a coherent and comprehensive policy on third-party funding for the domestic commercial arbitration ecosystem, consistent with global best practices. Such a nuanced approach is also necessary for India to realise its ambition of becoming a global arbitration hub.

What investors look for

Ultimately, investors deciding where to invest their capital do not assess tax rates or market access alone. They also ask what happens when a relationship breaks down. A country that can answer this question convincingly has a significant economic advantage.

India’s recent BITs and FTAs already demonstrate an evolution towards more sophisticated dispute-resolution mechanisms that balance investment protection with the country’s needs. The opportunity now is to connect that treaty practice with the goal of bolstering commercial arbitration in India.

The goal should be straightforward: agreements that strive to prevent disputes, arbitration proceedings that resolve such disputes efficiently and responsibly, and courts that enforce arbitral awards predictably. From this perspective, India does not need to make every treaty an arbitration treaty. Yet, through subtle adjustments, it can make commercial arbitration an integral part of the infrastructure supporting the country’s trade and investment relationships.

If India gets that balance right, its growing treaty network can do more than open markets. It can help establish India itself as a jurisdiction in which international businesses are willing to make commitments, with the confidence that, when those commitments falter, any resulting dispute will be resolved credibly and efficiently.